

2015 WL 5927847 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Satin O'CONNOR, Plaintiff,

v.

THE CITY OF NEW YORK, Police **Officer** Eric Mazurkiewicz, Police **Officer** Maldonado,
and Police **Officers** John Does #1-4 (names and number of whom are unknown at
present), and other unidentified members of the New York City Police, Defendants.

No. 0025459-2015.
October 2, 2015.

Summons

[Stuart E. Jacobs](#), Esq., Jacobs & Hazan, LLP., 11 Park Place, 10th Floor, New York, New York 10007, (212) 577-2690, for plaintiff.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York October 2, 2015

Plaintiff, SATIN O'CONNOR by her attorneys, Jacobs & Hazan, LLP, as and for her Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, [42 U.S.C. Section 1983](#), [Section 1988](#), and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 6, 2014, at approximately 4:00 p.m., plaintiff, Satin O'Connor, while lawfully inside of his apartment, located at 1253 Commonwealth Avenue, Bronx, New York, was falsely arrested, falsely imprisoned, unlawfully seized, assaulted, and battered by the defendants. Plaintiff was deprived of his constitutional and common law rights when the individual defendants falsely arrested, falsely imprisoned and unlawfully seized him in violation of the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff SATIN O'CONNOR is a resident of New York, New York.

3. POLICE **OFFICER** ERIC MAZURKIEWICZ is and was at all times relevant herein an **officer**, employee, and agent of the New York City Police Department.
4. POLICE **OFFICER** ERIC MAZURKIEWICZ is and was at all times relevant herein, assigned to the 43rd precinct.
5. POLICE **OFFICER** ERIC MAZURKIEWICZ is being sued in his individual and official capacities.
6. POLICE **OFFICER** MALDONADO is and was at all times relevant herein an **officer**, employee, and agent of the New York City Police Department.
7. POLICE **OFFICER** MALDONADO is and was at all times relevant herein, assigned to the 43rd precinct.
8. POLICE **OFFICER** MALDONADO is being sued in his individual and official capacities.
9. New York City Police **Officers** John Does #1-4 are and were at all times relevant herein **officers**, employees, and agents of the New York City Police Department.
10. Police **Officers** John Does #1-4 are being sued in their individual and official capacities.
11. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police **officers** as said risks attach to the public consumers of the services provided by the New York City Police Department.
13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and **officers** of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department and the City of New York at all times relevant herein, with the power and authority vested in them as **officers**, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as **officers**, employees and agents of the New York City Police Department.
14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.
15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.
16. The CITY OF NEW YORK held a hearing pursuant to [50-h of the general municipal law](#) on November 20, 2014.
17. This action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On July 6, 2014, at approximately 4:00 p.m., plaintiff was lawfully inside of her girlfriend's apartment located at 1253 Commonwealth Avenue, Bronx, New York.
20. Plaintiff's girlfriend, who had been depressed, attempted to commit suicide by taking too many prescription pills.
21. Plaintiff's girlfriend then called 911 to report her attempted suicide, and requested an ambulance come to her home located at 1253 Commonwealth Avenue, Bronx, New York.
22. Several minutes after plaintiff's girlfriend called 911, several defendant NYPD **officers** arrived at plaintiff's apartment.
23. Upon arrival at 1253 Commonwealth Avenue, Bronx, New York, EMS and the defendant police **officers** spoke to plaintiff's girlfriend, and began providing her medical treatment.
24. Once plaintiff knew her girlfriend was safe, and that she was receiving the necessary medical treatment, plaintiff attempted to leave the apartment.
25. At that point, without provocation or legal justification, the defendant police **officers** grabbed plaintiff and put her in an illegal choke hold causing plaintiff to suffer serious physical injuries.
26. Notably, at no point in time did plaintiff resist the defendant police **officers** in any way.
27. As a result of the defendant police **officers** illegal choke hold, plaintiff lost consciousness for several minutes.
28. The defendant police **officers** then unlawfully handcuffed and arrested plaintiff without probable cause or legal justification or any objective reason to believe that the plaintiff was a danger to herself or others.
29. The defendant police **officers** then picked plaintiff up off the floor and purposely dropped her back onto the floor, causing plaintiff to suffer further physical injuries.
30. Thereafter, defendants had plaintiff transported to St. Barnabas Hospital against her will.
31. The individually named defendants knowingly and wrongfully accused plaintiff of being emotionally disturbed.
32. Defendants had no objective reason to believe plaintiff was emotionally disturbed.
33. Defendants had no objective reason to believe plaintiff was a danger to herself or others.
34. At St. Barnabas hospital, plaintiff received medical treatment for the physical injuries inflicted by the defendant police **officers**.
35. Further, a medical evaluation at St. Barnabas Hospital concluded that plaintiff did not suffer from any form of psychosis and that she was not a danger to herself or others.
36. Eventually, after approximately 3 hours in police custody, the defendant police **officers** removed plaintiff's handcuffs and released her from custody at the hospital.

37. At no time did plaintiff commit a crime, nor did the defendant police **officers** have reason to believe she committed a crime.

38. Plaintiff was placed under arrest and unlawfully detained and confined without legal justification or probable cause.

39. Some of the defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unlawful detention, unlawful seizure, unlawful confinement, false arrest, false imprisonment, and use of excessive force against plaintiff.

40. The false arrest, unlawful seizure, false imprisonment, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs Fourth Amendment and Fourteenth Amendment Rights

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The individually named defendants while acting in concert and within the scope of their authority and acting under the color of law and as state actors, caused plaintiff to be falsely arrested and falsely imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City of New York as the employers of the **officers** is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FOURTH CAUSE OF ACTION

Failure to Intervene

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights, common law rights, and rights under the New York State Constitution were being violated in their presence by other **officers**.

51. Defendants failed to intervene to prevent the unlawful conduct described herein.

52. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City of New York as the employers of the **officer** are responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligence

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. Defendants owed a duty of care to plaintiff.

57. To the extent defendants claim that the injuries to plaintiff's person by the defendant police **officers** was unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by accidentally and negligently putting the handcuffs on plaintiff's wrists in an unreasonably tight and painful manner, and assaulting and battering plaintiff.

58. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

59. All of the foregoing occurred without any fault or provocation by plaintiff.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the **officer** defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

63. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Satin O'Connor. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

64. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the **officer** defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Assault

67. Plaintiff repeats and realleges paragraphs 1 through 66 as if fully set forth herein.

68. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the **officer** defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Battery

71. Plaintiff repeats and realleges paragraphs 1 through 70 as if fully set forth herein.

72. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff, handcuffed plaintiff in an unreasonably tight manner without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the **officer** defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The use of excessive force by defendants putting plaintiff in an unlawful choke hold, slamming her on the ground, and dragging her across the floor was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the **officer** defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

79. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Satin O'Connor demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to [42 U.S.C. § 1988](#).

Dated: New York, New York October 2, 2015

By: /s/

STUART E. JACOBS

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